

Court No. - 37

Case :- WRIT - C No. - 38772 of 2012

Petitioner :- Panna Lal Vishwakarma

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Anil Kumar Mishra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed by learned counsel for the respondents, put up this case on Monday i.e. 13th August, 2012 as fresh.

Order Date :- 9.8.2012

S.Prakash

Court No. - 37

Case :- WRIT - C No. - 38772 of 2012

Petitioner :- Panna Lal Vishwakarma

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Anil Kumar Mishra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Mushaffey Ahmad,J.

As prayed by Sri Mahboob Ahmad, learned counsel for the respondent, put up on 17.08.2012 as fresh.

Order Date :- 13.8.2012

PKB

Court No. - 37

Case :- WRIT - C No. - 38772 of 2012

Petitioner :- Panna Lal Vishwakarma

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Anil Kumar Mishra

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner and Shri Mahboob Ahmad appears for the respondents.

By this writ petition, the petitioner prayed for quashing the citation dated 10th July, 2012 for recovery of an amount of Rs. 1,25,025/- as electricity dues.

Learned counsel for the respondents was allowed time to obtain instructions. After obtaining instructions, he submits that amount which is mentioned in the citation is the amount of electricity dues of different electricity bills on the petitioner which has not been paid.

Learned counsel for the petitioner submits that petitioner has raised objections against bills which was not decided and on 7.1.2012 he has deposited Rs. 25,000/- and the re-connection charges.

The issues raised in the writ petition requires adjudication of facts. The remedy of the petitioner is to file an appropriate complaint under Para 6.5 of the U.P. Electricity Supply Code, 2005.

However, looking to the facts of the present case that certain amount has been deposited, we provide that in event, petitioner deposits 1/2 of the amount as mentioned in citation within two weeks before the Executive Engineer (respondent no. 4), no coercive steps shall be taken against the petitioner till the complaint under Paragraph 6.5 is decided. However, it shall be open for the respondents to proceed in accordance with law after decision of the complaint filed under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

The said complaint shall be decided by the Executive Engineer within four weeks from the date of the filing of the complaint.

Petitioner may file a complaint within two weeks from today, however, the petitioner shall continue to pay the current bill as and when due. The writ petition is disposed of accordingly.

Order Date :- 17.8.2012/S.Prakash